

10	Pettybridge vs. Quinn 2021-01186883	Plaintiffs Scott Pettybridge, Streetwise Investments LLC Motion for Attorney Fees Plaintiffs motion for attorney's fees is denied. The Court does not take issue with the amount of fees but instead finds them to be reasonable. The Court further finds that the settlement agreement authorizes fees in the event of a successful motion to enforce under CCP 664.6. However, as previously stated in denying ex parte relief, the Court concludes based on prevailing law that it lacks jurisdiction in light of the voluntary dismissal on 6/17/22. The Court acknowledges that the settlement agreement in question anticipated that the Court would retain jurisdiction to enforce per CCP 664.6 and indeed an order was presented to the Court to effectuate this continuing jurisdiction. Unfortunately, the Court has no record of the order being signed. Indeed, there is no record of the settlement or stipulation ever being filed except in conjunction with later proceedings to enforce the settlement and to enter judgment more than a year after the dismissal. It is apparent from the record that the parties informed the Court near or on the date reserved for trial on 4/18/22 that a settlement had been reached and that judicial supervision was contemplated per CCP 664.6. (ROA 91.) The Court's minute order went so far as to say, <i>"this is a Court supervised settlement pursuant to [CCP] 664.6."</i> In the same breadth the Court set the matter for an OSC re dismissal for 6/20/22 and stated that a failure to appear would result in a dismissal of the entire case. So, there is little doubt that the Court was prepared to retain jurisdiction per CCP
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		664.6 up until 6/20/22. But then without further notice or hearing, and without securing an order for retained jurisdiction notwithstanding dismissal, plaintiff voluntarily dismissed the case on 6/17/22 just days before the OSC hearing. While one might question the underlying logic, the law is somewhat unforgiving when an unqualified dismissal <i>precedes a later request for enforcement</i> under CCP 664.6. As explained: “Voluntary dismissal of an action or special proceeding terminates the court's jurisdiction over the matter. (Conservatorship of Martha P., 117 Cal. App. 4th 857, 867, 12 Cal. Rptr. 3d 142 (4th Dist. 2004)) The result is the court has no power to enforce a settlement agreement after dismissal. (Viejo Bancorp, Inc. v. Wood, 217 Cal. App. 3d 200, 206, 265 Cal. Rptr. 620 (4th Dist. 1989); see also Basinger v. Rogers & Wells, 220 Cal. App. 3d 16, 21, 269 Cal. Rptr. 332 (4th Dist. 1990) [plaintiff's remedy is to move to set aside the dismissal under CCP § 473(b) for mistake, inadvertence, or excusable neglect]) However, Code of Civil Procedure section 664.6 allows the parties to request the court retain jurisdiction to enforce the settlement even after dismissal until performance in full of the terms of the settlement. (CCP § 664.6; Wackeen v. Malis, 97 Cal. App. 4th 429, 439–441, 118 Cal. Rptr. 2d 502 (2d Dist. 2002)) Because of its summary nature, strict compliance with the requirements of section 664.6 is mandated. (J.B.B. Investment Partners, Ltd. v. Fair, 232 Cal. App. 4th 974, 984, 182 Cal. Rptr. 3d 154 (1st Dist. 2014)) A request for the trial court to retain jurisdiction
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		under section 664.6 must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety, (2) by the parties themselves, and (3) either in a writing signed by the parties or orally before the court. (Mesa RHF Partners, L.P. v. City of Los Angeles, 33 Cal. App. 5th 913, 917, 245 Cal. Rptr. 3d 512, 515 (2d Dist. 2019) [request must be by the parties themselves, not by their attorneys of record, their spouses, or other such agents]) The request must be express, not implied from other language, and it must be clear and unambiguous. (Wackeen v. Malis, 97 Cal. App. 4th 429, 440, 118 Cal. Rptr. 2d 502 (2d Dist. 2002)) For further discussion see this book, at § 2:73§ 2:73. Although the scope of a court's retention of jurisdiction under Code of Civil Procedure section 664.6 is undoubtedly limited, it is broader than what typically remains following entry of a judgment, and includes the court's equitable authority. (Lofton v. Wells Fargo Home Mortgage, 230 Cal. App. 4th 1050, 1061–1062, 179 Cal. Rptr. 3d 254 (1st Dist. 2014)) Caution Parties may not confer jurisdiction on a court to enforce a settlement by including such language in a settlement agreement but not asking the court to retain jurisdiction. (Hagan Engineering, Inc. v. Mills, 115 Cal. App. 4th 1004, 1010, 9 Cal. Rptr. 3d 723 (3d Dist. 2003)) Rather, the parties should file a stipulation and proposed order either attaching a copy of the settlement agreement and requesting that the trial court retain jurisdiction under section 664.6, or a stipulation and proposed order signed by the parties noting the
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		settlement and requesting that the trial court retain jurisdiction under section 664.6, or a stipulation to a judgment of dismissal that expressly provides that the court retains jurisdiction to enforce the settlement agreement under section 664.6. The process need not be complex, but the process must be followed. (Mesa RHF Partners, L.P. v. City of Los Angeles, 33 Cal. App. 5th 913, 918, 245 Cal. Rptr. 3d 512, 515–516 (2d Dist. 2019))” § 23:76. Effect of party’s dismissal following settlement, Cal. Civ. Ctrm. Hbook. & Desktop Ref. § 23:76 (2023 ed.)
11	SESS, LLC vs. JG Companies, Inc. 2023-01336443	Plaintiff SESS, LLC Motion to Expunge Mechanics Lien ***OFF CALENDAR***
12	The Surface Pros vs. Kenvys Enterprises 01CC01440	Judgment Creditor Judgment Recovery Assistance, LLC Motion for an Order Establishing 3rd Party Liability Against 3rd Party Obligor, Midway Law Firm APC And/Or Marc Steven Applebaum Judgment Creditor Recovery Assistance, LLC’s motion pursuant to Code Civ. Proc. §701.020 for order establishing the liability of third parties Midway Law Firm and Marc Applbaum in the amount of \$7,500 for failure to comply with third party levy is granted. Judgment Creditor is awarded attorneys’ fees of \$2,975. Basic Law regarding Liability of Third Party Served with Levy When service is made on a third person, the levying officer (or registered process server) will request the person to either deliver the property or pay the debt levied upon or to provide a